

9 & 10 GEO. 6.

*Great Western Railway
Act, 1946.*

Ch. xxiv.



CHAPTER xxiv.

An Act to empower the Great Western Railway Company to construct a railway and to acquire land in the county of Glamorgan and for other purposes.

[6th June 1946.]

WHEREAS it is expedient that the Great Western Railway Company (in this Act referred to as "the Company") should be empowered to construct the railway and works and to exercise the powers by this Act authorised and to acquire for the purposes of this Act and for the general purposes of their undertaking the lands in this Act described or referred to :

And whereas plans shewing the lands by this Act authorised to be acquired compulsorily such plans shewing the line of the said railway and sections shewing the levels thereof with a book of reference to such plans containing the names of the owners and lessees or reputed owners or lessees and of the occupiers of the said lands were duly deposited with the clerk of the county council of Glamorgan and such plans sections and book of reference are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas it is expedient that the Company should be authorised to apply their funds to the purposes of this Act :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Great Western Railway Act 1946.

Incorporation
of general
Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this or any former Act or Order of or relating to the Company) are incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts :

Provided that—

(1) any question of disputed compensation under the Lands Clauses Acts (other than a question required to be determined by two justices) shall be determined by a single arbitrator to be agreed upon between the Company and the person claiming the compensation or in default of such agreement appointed by the President of the Chartered Surveyors' Institution on the application of either party ;

8 & 9 Vict.
c. 18.

(2) section 34 of the Lands Clauses Consolidation Act 1845 shall be read and have effect subject to the following proviso in all cases in which notice of the effect of such proviso accompanies any offer of purchase money and compensation made by the promoters of the undertaking :

Provided that in the event of a party to whom a sum shall have been offered by the promoters of the undertaking at least ten days before the commencement of the hearing before the arbitrator failing within ten days of the making of the offer to notify the promoters of the undertaking in writing that he accepts the same all the costs and expenses of the promoters of the undertaking of and incidental to the arbitration incurred by them after the date of the offer shall in the event of his subsequently accepting such offer be borne by him including any fees and expenses of the arbitrator ; and

(3) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Company and shall be sufficient without the addition of the sureties mentioned in that section :

8 & 9 Vict.

The Railways Clauses Consolidation Act 1845 :

c. 20.

26 & 27 Vict.

Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863.

c. 92.

3.—(1) In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incorporated
herewith have the same respective meanings unless there be
something in the subject or context repugnant to such con-
struction In this Act unless the object or context otherwise
requires—

“the Company” means the Great Western Railway
Company;

“the deposited plans” “the deposited sections” and “the
deposited book of reference” mean respectively the
plans sections and book of reference deposited with the
clerk of the county council of Glamorgan in relation to
the Bill for this Act;

“the railway” means the railway by this Act authorised;

“the Lands Clauses Acts” means the Lands Clauses Acts as
modified by this Act.

(2) In this Act all distances and lengths stated in any descrip-
tion of works or lands shall be read and have effect as if the
words “or thereabouts” were inserted after each such distance
or length.

4. The provisions of sections 18 to 23 of the Railways Clauses Protection of
Consolidation Act 1845 shall for the purposes of this Act extend gas and water
and apply to the water and gas mains pipes and apparatus of any mains of local
local authority or water board and shall be construed as if “local authorities.
authority” and “water board” were mentioned in those sections
in addition to “company” or “society” provided that any
penalties recovered under section 23 shall be appropriated to that
fund of the local authority or water board to which their revenues
in respect of water or gas (as the case may be) are appropriated.

5. Subject to the provisions of this Act the Company may make Power to
and maintain in the line and according to the levels shown on the Company to
deposited plans and the deposited sections the railway hereinafter make new
described with all proper works and conveniences connected railway and
therewith and may enter upon take and use such of the lands works.
delineated on the deposited plans and described in the deposited
book of reference as may be required for those purposes The
railway hereinbefore referred to and authorised by this Act is—

A railway 1 mile 3 furlongs in length wholly in the borough
of Port Talbot in the county of Glamorgan commencing by
a junction with the docks branch of the Company's Port
Talbot railway and terminating by a junction with the
Ogmore Valleys extension of that railway.

6. For the purposes of tolls rates fares and charges and for all Rates and
other purposes the railway shall form part of the undertaking of charges.
the Company.

Power to
deviate.

7. In making the railway the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any extent not exceeding ten feet upwards and ten feet downwards or to such further extent as they may find necessary or convenient and as may be sanctioned by the Minister of Transport.

Power to
acquire
additional
lands.

8. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take and use for the general purposes of their undertaking all or any of the lands following delineated on the deposited plans and described in the deposited book of reference (that is to say) :—

In the borough of Port Talbot and county of Glamorgan—

Lands lying on and adjoining the western side of the Company's South Wales railway between the bridge carrying the docks branch of the Company's Port Talbot railway over the said South Wales railway and the Company's Taibach loop and a point seven chains north thereof ;

Lands lying on and adjoining the eastern side of the said South Wales railway and the southern side of the said docks branch between points situated respectively one chain and two chains south of the said bridge ;

Lands lying on and adjoining the western side of the said Taibach loop between the said bridge and the level-crossing of the said Taibach loop by the Morfa Colliery tramway ;

Lands forming the site of part of the said tramway and extending southward along such tramway for a distance of five chains from the said level-crossing ;

Lands lying on and adjoining the western side of the Ogmore Valleys extension of the said Port Talbot railway between the bridge carrying the road from Morfa to Bridgend over the said extension and a point sixty-one chains north thereof ;

Lands lying on and adjoining the western side of the said extension between the bridge carrying the said extension over the said South Wales railway and a point one mile twenty chains north thereof ;

Lands lying on and adjoining the western side of the said South Wales railway and extending from the last-mentioned bridge to a point thirty-nine chains north thereof.

9. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished if the Company shall so determine and give notice in writing of such their determination to the owner of any right of way referred to therein. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

As to private rights of way over lands taken compulsorily.

10. If the railway is not completed before the first day of October one thousand nine hundred and fifty-one then as from that date the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Period for completion of railway.

11. The powers of this Act for the compulsory purchase of lands by the Company shall cease on the first day of October one thousand nine hundred and forty-nine.

Period for compulsory purchase of lands.

12. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Power to owners to grant easements.

13. In settling any question of disputed purchase money or compensation payable under this Act by the Company the court or person settling the same shall not award any sum of money for or in respect of any improvement or alteration made or building erected or for or in respect of any interest in the lands created after the first day of February one thousand nine hundred and forty-six if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered buildings acquired by Company &c.

14. And whereas in the construction of the railway and the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be

Owners may be required to sell parts only of certain properties.

severed from the remainder of the said properties without material detriment thereto therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as the "scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment to such remainder he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the arbitrator to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the arbitrator") shall in addition to the other questions required to be determined by him determine whether the whole of the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment to such remainder and if not whether any and what other portion (which may include part of the portion in respect of which such notice to treat was served) of such scheduled properties can be so severed:
- (4) If the arbitrator determines that the whole of the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment to such remainder the owner may be required to sell and convey to the Company the portion so determined to be severable without the Company being obliged or compellable to purchase the whole of such scheduled property the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator:

- (5) If the arbitrator determines that the whole of the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment to such remainder the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the arbitrator determines that the whole of the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment to such remainder (and whether or not he shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment to such remainder but that any such other portion as aforesaid can be so severed such notice to treat shall be construed and read as if such other portion as aforesaid had been substituted therein for the portion originally specified therein and the Company may withdraw such notice to treat and thereupon shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice but if the Company shall not withdraw such notice they shall pay to the owner so much of all costs charges and expenses reasonably and properly incurred by him in consequence of such notice as the arbitrator shall having regard to the circumstances of the case think fit and his determination shall be final.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

As to entry
on land
after notice
to treat.

15. At any time after notice to treat has been served by the Company under this Act the Company may after giving to the owner and occupier of the land not less than fourteen days' notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections 84 to 90 (inclusive) of the Lands Clauses Consolidation Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

Power to
Company
to enter upon
property for
survey and
valuation &c.

16. The Company and their surveyors solicitors officers contractors and workmen may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings by this Act authorised to be taken or used or any of them or any lands houses and buildings in respect of which a claim for compensation under this Act is or may be received for the purpose of surveying inspecting and valuing the said lands houses and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses and buildings.

Application
of certain
sections of
Acts of 1923
1924 and 1933.
13 & 14 Geo. 5.
c. xxx.
23 & 24 Geo. 5.
c. xx.
14 & 15 Geo. 5.
c. l.

17. The provisions of section 46 (Powers as to building on or over lands &c. of Company) of the Great Western Railway (Additional Powers) Act 1923 as amended by section 39 of the Great Western Railway Act 1933 and of section 66 (As to private street expenses in certain cases) of the Great Western Railway (Additional Powers) Act 1924 and of section 38 (Power to hold or sell or otherwise dispose of lands) of the Great Western Railway Act 1933 shall extend and apply to any lands acquired under the powers of this Act by the Company.

Power to apply
funds to
purposes of
Act.

18. The Company may appropriate and apply to all or any of the purposes of this Act and for or towards the general purposes of their undertaking being in each case purposes to which capital is properly applicable any of the moneys which they have raised or are authorised to raise and which are not required for the purposes to which they are made specially applicable.

For protection
of Guest Keen
Baldwins Iron
& Steel
Company
Limited.

19. Notwithstanding anything in this Act contained or shown on the deposited plans the Company shall not without the previous consent in writing of Guest Keen Baldwins Iron & Steel Company Limited acquire under the provisions of the section of this Act of which the marginal note is "Power to Company to make new railway and works" or under the section of this Act of which the marginal note is "Power to acquire additional lands" any lands situate in the borough of Port Talbot in the

county of Glamorgan other than those shown coloured pink on the plan signed in duplicate by Allan Stephen Quartermaine on behalf of the Company and by David John Young on behalf of Guest Keen Baldwins Iron & Steel Company Limited one copy of which has been retained by the Company and the other by Guest Keen Baldwins Iron & Steel Company Limited.

20. Nothing herein contained shall be deemed or construed Provisions as to exempt the railway by this Act authorised to be made from to general the provisions of any general Act relating to railways now in railway Acts. force or which may hereafter pass during this or any future session of Parliament.

21. The provisions of the Town and Country Planning Acts Saving for 1932 and 1943 and the Town and Country Planning Act 1944 town and country planning. and of any order scheme or regulation made under those Acts 22 & 23 Geo. 5. or under any enactment repealed by those Acts so far as those c. 48. provisions are from time to time in force in respect of the land 6 & 7 Geo. 6. on which any development within the meaning of those Acts c. 2. is carried out under this Act shall apply to that development. 7 & 8 Geo. 6. c. 47.

22. All costs charges and expenses of and incident to the Costs of Act. preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

The schedule referred to in the section of this Act the marginal note of which is "Owners may be required to sell parts only of certain properties."

Area.	No. on deposited plans.	Description of property.
Borough of Port Talbot in the county of Glamorgan.	18	School playground.
	19	School playground and brick shelter.
	20	Rough land and slope.
	21	Rough land slope telephone posts and wires.

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